

Memo.No.1496/SC.E/86-2, Genl.Admn.(SC.E) Dept., dt.08.08.1986: Clarifications on entrustment of departmental inquiries to Commissioner of Inquiries.

Subject Heading : Commissioner of Inquiries - entrustment of inquiries

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Ref : Govt.Memo.No.1496/SC.E/86-1, G.A.(SC.E) Dept., dt.16.07.86.

In the Memo cited instructions were issued to appoint the Commissioner for Departmental Enquiries as Inquiry Officer for conducting departmental enquiries in terms of Rule 19(2)(a) of the APCS (CC&A) Rules, 1963.

2. The issue was further examined and the following clarifications are issued for guidance and necessary action:-

- (i) All the cases enquired into by the Anti-Corruption Bureau and recommended for departmental action would henceforth be referred to the Commissioner for Departmental enquiries. These cases would be adequately documented and presented by the Investigating Officer of the Anti-Corruption Bureau in accordance with Rule 19(2)(a) of the A.P.C.S.(CC&A) Rules, 1963.
- (ii) The other category of cases that could be referred to the Commissioner for Departmental Enquiries would be those attracting major punishment, if the delinquency alleged is proved, and will be confined to cases of officers for whom the appointing authority normally would be the Government. In such cases, Departments concerned will have to ensure that well conceived charges are framed against the delinquent officers and refer the cases to Commissioner for Departmental Enquiries only after adequate documentation. It should further be ensured that the cases thus referred would not require detailed enquiry at field level. Further, wherever the Commissioner for Departmental Enquiries requires technical assistance in the above cases for appreciation of any aspect of evidence, the concerned department should provide the same promptly and adequately. The departments concerned should, therefore, exercise restraint in selecting the cases for reference to the Commissioner for Departmental Enquiries. In other words, references to the Commissioner should not be routine. In such cases, the departments concerned shall arrange to supply adequate number of copies of connected documents and also make available official witnesses, records etc.

- (iii) As indicated in sub-para (ii) above, the Commissioner for Departmental Enquiries would by and large enquire into clearly investigated cases where documentation is already available for establishing the delinquency of the officer and he will not be required to conduct Enquiries suo motu, to establish prima facie case, for taking a decision to proceed against the delinquent officer.